

SYNTHETIC TRAINING APPELLATE PROFFER — NOT ADMINISTRATIVE RECORD
— ALL FACTS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT SYN-CA4-25-
AG-4301

Notice concerning T.R. declaration Extra-record proffer

A.R.M. tenders the attached declaration solely to preserve the existence and asserted date of a new event for procedural analysis. The event occurred in February 2025, after the BIA's January 13, 2025 final order. T.R.'s declaration did not exist during the immigration-judge or BIA proceedings, was never lodged with either tribunal, and was never admitted.

The petition for review was filed February 11, 2025, twenty-nine days after the January 13 order. Any assumed filing on day 31 is counterfactual and is not a docket fact in this proceeding.

The attached pages use PA labels, never AR labels. A.R.M. does not contend that correcting the agency's asserted omission of preexisting Exhibit P-7 permits adding this declaration to the administrative record.

A.R.M. does not ask the court to treat T.R.'s account as an established merits fact. The proffer preserves the document and its asserted creation date while acknowledging the record limit.

Declaration of T.R.: identity and limits

I use only the initials T.R. and am A.R.M.'s cousin. I live in the Republic of Kalyra. I do not provide an address, date of birth, identity number, or expanded name. I make this statement on February 20, 2025 about events I observed earlier that month.

I did not testify before the immigration judge, submit a statement to the BIA, or communicate with either tribunal before the January 13 order. I first spoke with counsel on February 16 after S.M. relayed that the family residence had been searched.

I know A.R.M. as a family member but did not work in procurement. I have no personal knowledge of the May 2023 detention, the invoice packets, the June complaint routing, or what evidence the BIA considered. My declaration concerns only the February 2025 residence event and later communications.

February 3 arrival at the family residence

On February 3, 2025, I arrived at the family residence at approximately 6:35 p.m. to deliver food to S.M. A dark utility vehicle and a gray municipal vehicle were parked nearby. I saw four people inside the residence through the open entry: two wore Unit Four-style uniforms and two wore plain work jackets.

One uniformed person told me to wait outside because a regional inquiry authorized a records search. I did not see a warrant or written order. I could see open cabinets and boxes placed on the floor. S.M. stood near the kitchen with another uniformed person.

I noted permit HL - 47 on the utility vehicle because S.M. had previously told me to record that number if I saw it. I did not know its connection to any invoice at the time.

Statements and items sought during the search

From the entry I heard a uniformed person ask where “the annex clerk” kept the North Quay Lamps copies. Another person asked whether A.R.M. planned to return for the family work box. S.M. said A.R.M. was not in Kalyra and that no procurement pages were in the residence.

One plain-jacketed person carried the family tablet to the utility vehicle and returned without it. I saw another person place the paper notebook in a clear bag. I cannot state whether either item was later returned because I left before the search ended.

No person struck me or S.M. while I was present. One officer warned me not to interfere and wrote my initials in a small book. I did not hear a threat of torture. I report the words and actions I observed without assigning the speakers' legal status beyond their clothing and vehicle access.

End of the event and immediate notes

At about 7:05 p.m., a uniformed person told me to leave the street. I walked to a nearby transit stop and wrote the time, vehicles, permit, clothing, and phrases in a message draft on my own device. I did not send the draft because I feared the account was monitored.

At 8:17, S.M. called from a borrowed device. S.M. said the people had left and taken the tablet, notebook, and a box of A.R.M.'s employment papers. I did not personally see their departure or inventory and therefore identify that information as S.M.'s report.

The next morning I copied my draft into a paper note and kept both versions. I did not contact a Kalyrian agency because S.M. said the earlier complaint had returned to Unit Four. That reason is based on S.M.'s explanation, not my firsthand observation of the 2023 routing.

Later communications and authentication

On February 8, a new message account sent me a photograph of the outside of the family residence and asked whether “the clerk abroad” had received the search news. I did not reply. On February 12, I showed the message to S.M. using my device.

Counsel collected a screenshot and exported message metadata during a February 16 video call. I retained the device. Counsel asked me to preserve the original, the February 3 draft, and the paper note. I have not independently verified the sender or the image creation time.

My device was set to local Kalyrian time. The export lists the account handle, received time, text, and attachment hash. Those metadata can help authenticate what I received but do not prove that Unit Four, Harbor League, or any official sent it.

Why this account is genuinely new

Every event I describe occurred after January 13, 2025, the date of the BIA final order. I had not prepared an earlier declaration. Neither A.R.M.'s April 2024 exhibit list nor the September hearing receipt identifies me as a witness.

I first learned that counsel wanted my account on February 16, first spoke with counsel that day, and signed on February 20. No missing clerk transmission could have omitted this declaration from the agency record because it did not exist when that record closed.

Counsel represents that A.R.M.'s own P-7 declaration is different because it was written and lodged before the agency hearing. The agency exhibit receipt, hearing transcript, and certifications—not this proffer—would be needed to establish its admission and transmission history. My statement cannot share that asserted history: it remains an extra-record proffer even if its allegations resemble earlier risk evidence.

Execution and proffer classification

I reviewed this declaration through a Kalyrian interpreter and declare that the facts attributed to my observation are true to the best of my knowledge. I have identified information supplied by S.M. and matters I cannot authenticate.

I signed on February 20, 2025. Counsel attached it to this appellate proffer on February 24. The eight pages are labeled PA1–PA8. They are not certified administrative-record pages, not evidence the BIA considered, and not support for evaluating whether the BIA's existing record analysis was correct.

The proffer may bear on a separate procedural avenue, but this document takes no position on such relief. It must not be cited as proof of an AR fact or merged into the certified administrative record.

Counsel certifies service through the appellate docket's institutional service channels and identifies the declarant only by initials under the privacy protocol.